

HOUSE No. 1714

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act increasing parental involvement with childcare.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1714

By Representative Garry of Dracut, a petition (accompanied by bill, House, No. 1714) of Colleen M. Garry relative to the involvement of non-custodial parents in child care. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1517 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act increasing parental involvement with childcare.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 28 of Chapter 208 of the General Laws, as so appearing, is hereby
2 amended by inserting at the end of the first paragraph the following:— When the court makes an
3 order or judgment for maintenance or support of a child or children hereunder, the court shall
4 determine whether childcare services are deemed necessary by the custodial parent and whether
5 the non-custodial parent is available and capable of providing all or part of said childcare. If the
6 court determines that the non-custodial parent is available, capable, and desirous of providing all
7 or part of said childcare for the child or children for whom support is ordered, the court shall
8 include in its order provisions allowing the non-custodial parent the right to provide such child
9 care. Nothing in this section shall be deemed to authorize entry by the non-custodial parent into
10 the home of the custodial parent for the purposes of childcare. A change in the availability of the

11 non-custodial parent to provide childcare shall constitute a material and substantial change in
12 circumstances for purposes of modification of existing judgments.

13 SECTION 2. Section 9 of Chapter 209C of the General Laws, as so appearing, is hereby
14 amended by inserting at the end of subsection (a) the following:— When the court makes an
15 order or judgment for maintenance or support of a child or children, said court shall determine
16 whether day care services are deemed necessary by the custodial parent and whether the non-
17 custodial parent is available, capable, and desirous of providing all or part of said child care.
18 When the court has determined that the non-custodial parent is available, capable, and desirous
19 of providing child care for the child or children for whom support is ordered, the court shall
20 include in its orders provisions allowing the non-custodial parent the right to provide said child
21 care. Nothing in this section shall be deemed to authorize entry by the non-custodial parent into
22 the home of the custodial parent for the purposes of childcare. A change in the availability of the
23 non-custodial parent to provide childcare shall constitute a material and substantial change in
24 circumstances for purposes of modification of existing judgments. Ch. 208, sec. 28 refers to
25 support orders as part of divorce. Ch. 209C, sec. 9 refers to support orders for children born out
26 of wedlock.